

Motion to Deem Matters Admitted

Defendants Michelle Denham and Lisa Berry move for an order against plaintiff deeming requests for admission, set one, admitted. No opposition has been filed.

Defendants' request for judicial notice is granted.

The unopposed motion is granted. (Code Civ. Proc., § 2033.280.) Plaintiff Cody Ernst is deemed to have admitted defendants' requests for admissions, set one, numbers 1 through 18.

8. S-CV-0051202 Khachadourian, Gilbert Jr. v. Cook, Richard N

Defendant Verdera Community Association's Motion for Determination of Good Faith Settlement

Defendant Verdera Community Association moves for determination of good faith settlement. (Code Civ. Proc., § 877.6, subd. (a)(1).) The unopposed motion is granted. Based on the standards set forth in *Tech-Bilt v. Woodward Clyde & Associates* (1985) 38 Cal.3d 488, the settlement at issue is within the reasonable range of the settling other defendants' proportionate shares of liability for plaintiffs' injuries and therefore is in good faith within the meaning of Code of Civil Procedure section 877.6.

9. S-CV-0053223 Myatt, Wayne T v. BJs Restaurant Inc.

The demurrer to plaintiff's third amended complaint and motion to strike portions of plaintiff's third amended complaint is continued to **October 20, 2026 at 8:30 a.m. in Department 32.**

10. S-CV-0053802 Dizdarevic, Alen v. Cal. Dept. of Transport.

The two motions to compel are dropped from calendar as no moving papers were filed with the court.

11. S-CV-0053922 Barriga, Annelise v. Richmond Am. Homes

Defendant's Motion for Judgment on the Pleadings

Defendant moves for judgment on the pleadings as to plaintiff's complaint for the remaining count of negligence. Plaintiff opposes the motion.

"A motion for judgment on the pleadings is the functional equivalent of a general demurrer." (*Spencer v. City of Palos Verdes Estates* (2023) 88 Cal.App.5th 849, 861.) The grounds for the motion must appear on the face of the complaint and any judicially noticeable documents. (*Ibid.*) The court must accept as true all material factual allegations in the complaint. (*Ibid.*) The court, however, does not accept the truth of